TO: Tennessee Department of Education

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RE: Establishing Evaluation and Guided Adoption of AI in Education (AIED)

Executive Summary

Although Tennessee is already among the leading states in AI in education (AIED) regulation in the U.S., the existing policy still lags far behind the rapid adoption in practice. The government asks schools to create their own policies, and is still in the process of gathering information and providing guidance after two years. In contrast, students and teachers are exploring the tools on their own, facing high barriers to access and risks related to time, ethics, and efficiency.

To improve the high adoption, high uncertainty, but low regulation field, the government and the Department of Education should consider the following policy. Firstly, the government should set up an evaluation mechanism assessing educational AI tools. Then, they should publish a recommendation list along with concrete use cases and guidance. Finally, they should keep track of the public's opinion and promote corresponding policies in the future.

The proposed policy aims to raise awareness and emphasize AI as a tool, replacing rigid regulation with guided adoption, also promoting a gradual process supported by open discussion.

Issue Background

In 2025, Memari and Ruggles summarized that only 34% of AI in education studies reported standardized effect sizes, which is a commonly recognized metric to evaluate the actual effectiveness of AI-assisted learning. Due to the nature of education, it is hard for researchers to conduct systematic research on the topic. They need to control an enormous number of variables and keep track of the subjects for a long time to draw an evidence-based conclusion regarding the effectiveness of AI.

In contrast, everyone who has access to the internet can access AI almost without any barriers. According to Tennessee SCORE, over 85% of district leaders reported that educators in their district are using AI in 2025 (SCORE). However, the current policy in Tennessee doesn't match the speed at which people are adopting this new tool in the education field. As stated in SB1711, schools should "adopt a policy regarding the use of artificial intelligence technology." Also, HB 0531 stated that schools "shall provide age-appropriate instruction to students on how to access, utilize, and critically evaluate various artificial intelligence tools." Although the government is actively showing its attention to the issue, there is a lack of concrete regulation. Since the policies are decentralized to the schools, and schools sometimes decentralize again to let the educators decide their own rules, there is a big discrepancy in the current landscape.

This creates issues for students, schools, and the government.

First of all, AI has a huge potential in ruining the learning process. Wang et al. (2024) stated that they "explore how AI may alter cognitive development, risk passive knowledge acquisition, and deepen achievement gaps." In the current academic curriculum, task completion is one of the most significant determinants of students'

performance, even though there is still a cognitive gap between it and the actual development of problem-solving and critical thinking skills. While AI can complete tasks perfectly for students, they are not always helpful for the latter ones. That leads to “potential erosion of critical cognitive skills due to ethical challenges such as misinformation, algorithmic biases, plagiarism, privacy breaches, and transparency issues,” according to Chunpeng from CQUniversity.

The lack of stricter state-wide regulation also creates problems for instructors. Instructors have been working with traditional teaching methods, making it more difficult for them than for students to adopt new AI tools. Currently, teachers and students are left to explore independently. That causes a high trial-and-error burden. Sometimes the exploration produces effective outcomes, but it can also lead to wasted time and effort without meaningful outcomes. In addition, since everyone has their own definition of misusing AI for cheating and unethical issues, it is impossible to set up a consistent rule based on the current situation.

Finally, as people are pressured to follow the AI stream on their own, some developers and institutions are exploiting the public fear of missing out. They claim that their product or service incorporates cutting-edge AI without any solid evidence. The public, especially the parents, could blindly follow those advertisements and enforce untested teaching methods on their children. Unfortunately, it is very difficult for the government to hold anyone responsible for that with the current loose regulations. It is true that people might find out later that those AI educational tools are exaggerated, but it might take months or years, which is more valuable for students and kids.

In terms of time, the current policy also has a potential drawback. It might take years for the government to hear back from the schools about their successes and failures.

However, the tools are evolving so fast that the guidance provided based on outdated data is probably outdated too.

Based on the discussion above, there is clearly a need for the government to take a more active role in regulating AI in education to reduce access barriers, mitigate risks, and bring consistency and accountability to the use of AI in education.

Advocacy Proposal

My policy might seem complicated at first because it involves two steps and is built on the cooperation of the government, schools, and developers.

The most urgent step to take is to bring awareness to the public. What tools are out there? What do they do? How well do they do?

I propose that the government and the Department of Education should hire developers in the field and students from various schools to assess existing educational AI tools. They should begin by creating a platform for people to easily compare and contrast different AI tools. Here is an example of such a platform for general AI assessment: Zheng et al. (2023) at UC Berkeley developed Chatbot Arena. People can compare responses from the same use case from different AI models and vote for the better one. Then, the arena produces a ranking based on human preferences. Similarly, we can create an AIED arena, where students and experts can create a scenario of real-world learning, and vote for the anonymous tools that they think teach people better. The arena should take down the ranking, along with some useful and informative use cases.

While effectively gathering people's opinions on those tools, the AIED arena should also serve as a standard-setting mechanism. People, including students, developers, and staff of the Department of Education, should assess AI's ability to reject

unhelpful and unethical prompts. For example, if a student asks the AI to finish the homework, the AI should say no and recommend that the student use it in a wiser way. If being asked to provide information, the AI should stay as truthful as possible, and also notify the user of the possibility of providing false information and the importance of fact-checking. With those potential harms flagged, we can then make individuals less vulnerable to discovered risks.

At the end of this step, the government should create a recommended list, including AI that passed the functional and ethical tests mentioned above, and is also rated as effective and helpful in the arena. Along with the list, the government should also provide detailed guidance, including the use cases. For example, it can be a strong prompt template that asks the LLM (large language models like ChatGPT) to take the role of an instructor rather than a homework completer. It can also be a previously lesser-known but proven powerful AI tool that focuses on assisting teaching within a specific niche topic. After the schools receive the recommendation, they should notify their staff and students, and put the instructions in an obvious place for easy access.

This step of adoption seems easy, but it could lead to serious problems if not implemented with strategies. That's why we need to apply the narrative framework mentioned in "Love is Love". The reason that advocacy is successful is partially that it shifts abstract policies to relatable values such as love and freedom, and its focus is not on everyone but on gathering enough voice to gradually win the change of policy and people's minds.

Even though AIED has a huge potential in improving learning, we should emphasize that it is fundamentally a tool. What we want out of adding regulations is not to create a healthy emerging industry or produce better tools, but to promote better learning.

AI should be a personalized tutor, an easily accessible resource, and an assistant for handling repetitive tasks. Those advantages can help make learning more effective, accessible, and comfortable. After all, people have the freedom to teach or learn in their own way, whether it includes computers, the internet, or AI. Therefore, as the government is publishing the list or the school adopting the list, they should clearly announce that it is intended as guidance rather than a regulation. Students and teachers should be encouraged to try those recommended tools with lowered access barriers in their own ways, and there should be no pressure to stay with their existing learning patterns.

By asserting AI's auxiliary role in learning, we can encourage more people to be aware of the benefits it can bring while protecting them with the research and assessment done in the first place.

Beyond implementing those steps, the government must also ensure an open environment where companies and schools can lower information barriers and actively share their insights and knowledge.

As mentioned in the issue background section, information in AIED flows extremely slowly. There are actually lots of brilliant ideas, including a simulated classroom where the student takes the role of a teacher and consolidates knowledge through teaching, asking students to cite LLMs with the prompt used to encourage intentional and reflective prompts, and customizing quiz generators. This valuable information is often not shared, leading to many opportunities being wasted. Instead of waiting for years for those insights to flow back to the government from the school, being inspected, then published, people should be able to share them freely.

Therefore, while recruiting people for the arena, the government should also treat it as an opportunity for an open discussion. Also, after publishing the recommendation,

the discussion should be maintained, as more issues might come up during real adoption and after those tools are updated.

Feasibility

One of the counterarguments I received during interviewing a staff member at the LIVE incubator is that people from the industries care more about ownership and intellectual property. And that makes people reluctant to be open to discussion. For example, the Metro Nashville Public Schools have an approval list of AI, but they didn't publish the mechanism for the approval. Also, the Live incubator and the SMART center from Tennessee State University all have their product, including websites and apps, and people have to dive deep to access their advice on the issue. The reason is simple. In the early AI market, staying competitive and fighting for the market is usually more important than collaboration, which means giving out secrets and insights for free. Therefore, developers tend to remain silent and build their valuable thoughts directly into their products rather than sharing them with the public and their competitors.

To solve the issue, the government should incentivize them by demonstrating the benefits of collaboration. First of all, for active developers, their products can be reviewed and assessed earlier. If they didn't pass the test for some reason, they will be given the reason to update their model. Otherwise, they can be on the recommendation list, where all the Tennessee schools can see them. And since such a list is quite rare in other states, their products will be noticed by the market outside of Tennessee for sure. In addition, after schools adopt their products, they can then negotiate with the school, collecting data under consent. And that real-world data is

crucial for developing future updates for those developers. With those incentives, the government should find enough developers to work with.

One noticeable and important similar bill is SB 1047 from California. It asks developers to conduct safety testing, assess risks, and take responsibility for potential harms. In other words, it regulates AI just like regulating medicine by imposing safety protocols and audits. However, it was turned down in September 2024.

This is where we need to apply the second framework, called the Overton Window. In short, the window refers to the range of policies that are acceptable to the public at a given time. SB 1047 aimed for the ultimate goal of AI, but it failed because it is way out of the public's acceptance. It is true that ethics and safety matter, but imposing ultimate pressure on the industry will lead to more harm. It might lead to a monopoly because small companies can't keep up with the heavy testing phase. As a result, while implementing the proposed policy, we need to consider the boundary of acceptance. We should allow enough space for the interpretation of the policy, since on goal of the policy is to expand the Overton Window on AIED. Instead of suppressing creativity, the policy should pursue the goal of encouraging protected and guided exploration. As the Window shifts in the future, we can then shift our focus to a stricter or looser regulation based on the discussion we had among people.

Conclusion

The overall issue is still in its beginning phase and will gradually move toward the desired state, just as the invention and adoption of computers, projectors, and such.

However, without proper policies, AI will still create uncertainties for educators, families, and students before a proper policy comes out. Therefore, the goal of my advocacy is not to achieve a perfect policy that makes everyone master AI and adopt it perfectly in daily learning or teaching. It should create an interim solution and motivation for open discussion to achieve the desired future, safer and quicker, so that the current generation is not left behind.

Compared to existing laws and the proposed bill, this policy has several advantages. First of all, it calls for people's awareness of the tool, especially its potential harms. That is the most important action to take in the current situation. Also, it takes extra costs for ethics checking and improvements by promoting AI that is proven to be ethical and safe to use. So the companies and developers behind the tools can be guided to prioritize ethical and safety considerations, rather than gaining the market by capturing public attention with cool but unchecked features. Finally, it solves the potential competition between the allies. As I mentioned above, the allies of the advocacy are afraid that discussing experiences and insights with competitors might undermine their advantage. But when cooperating with the government, such concerns will disappear, since the government isn't a competitor, and it has stayed very conservative from the beginning on AI issues.

Thus, the advocacy plan minimizes losses for existing groups and brings order to the current complex landscape of AI in education. It requires people, including developers, policy makers, educators, and students, to spend more effort on deciding how to incorporate AI to make students learn more effectively and safely.

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AI statement

I used ChatGPT for formatting the sources and simple translation work. I also used Grammarly for grammar checks.